

# FBOP B&F PROCUREMENT PROCESS

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# Solicitation to Award



# Sources Sought Notice

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- Posted to SAM.gov or GSA (MRAS)
- Open for 7 to 14 days for response
- Generally, includes a questionnaire and Statement of Work/requirement description and Drawing (if applicable)
- Utilized for market research and set-aside determinations
- Your responses and input matter

# Set-Aside Determinations

## 19.104-1 Total small business set-asides.

- A “set-aside for small business” is the limiting of an acquisition exclusively for participation by small business concerns. For contracts above the micro-purchase threshold, the contracting officer must set the contract aside for small business if there is a reasonable expectation of obtaining offers
  - (1) From two or more responsible small business concerns; and
  - (2) That are competitive in terms of fair market prices, quality, and delivery.
- Sources Sought responses materially assist the making of these determinations

# Solicitations

- Posted to SAM.gov or GSA eBuy with all required documentation to develop a response
- Includes specific instructions developed for the type of requirement and solicitation
- Provides instructions on how to submit the response
  - Email
  - JEFS System- DOJ file sharing system
  - Mail

# Types of Solicitations

| Type                    | How is it Evaluated?                                                                                                                                                                       |
|-------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sealed Bidding          | Most advantageous to the Government, considering only price and the price-related factors specified elsewhere in the solicitation.                                                         |
| Two Step Sealed Bidding | Step One- Acceptable/Not Acceptable Design<br>Step Two- Most advantageous to the Government, considering only price and the price-related factors specified elsewhere in the solicitation. |
| Request for Proposal    | All aspects of the proposal are reviewed and ranked based on evaluation factors. Negotiations will be held as needed during the process                                                    |
| Request for Quote       | Received quotes will be reviewed using comparative evaluations                                                                                                                             |

# Site Visit

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- Opportunity provided to see the work site and develop an understanding of its unique circumstances. (see 52.236-3 Site Investigation and Conditions Affecting the Work)
- Information regarding the visit and requests to attend will be included in the Instructions to Bidders/Quoters or cover letter.
- Only one site visit is scheduled due to the impact it can have on operations
- No technical questions will be answered on site; contractor must submit questions in writing.
- Attendance is highly encouraged

# Questions and Responses

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- Written questions submitted to the contracting officer is the only way to submit any inquiries during the solicitation phase
- Should be written professionally and detailed so an appropriate response is able to be provided
- Will all be made publicly available through the solicitation
- Responses to questions do not represent any change to the requirement. They are for informational purposes only
- Any changes to the solicitation are completed via official amendments to the solicitation made by the contracting officer



# Bid Opening/Quote and Proposal Deadlines

- All responses must be received by the date and time stated.
- Only responses received in the manner identified as required in the solicitation documents will be considered
- Responses are generally received electronically as one combined pdf document via email or the JEFS system. The required method will be outlined in the solicitation documents
- Original bid guarantees with wet signatures must be received at the office identified in the solicitation prior to the deadline
- Sealed Bid Abstract will be posted to [sam.gov](https://sam.gov)

# Evaluation

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- Responses will be evaluated in line with the methods identified in the solicitation documents based on the type of solicitation used
- Price and any applicable evaluation factors will be reviewed for each response
- Responsibility determinations will be made prior to contract award
- Contractors **MUST** be actively registered at SAM.gov at the time of the response deadline in order to be considered for contract award.

# Contract Award

- Contractor selected for award will receive notification of award and applicable information regarding the administrative points of contact.
- Award notices will be published to the SAM.gov in the contract opportunities section
- If awarded a contract, please read all included documents in the award notice for important information about the next steps in the process
- Awarded contractors main point of contact will be the identified Administrative Contracting Officer. However, they may always contact the Procuring Contracting Officer with concerns or issues they feel are not being properly addressed

# Commonly Seen Issues

- Failure to provide the required bid guarantee (SF24)
- Failure to acknowledge amendments that materially change the requirement
- Not maintaining and active SAM registration
- Past Performance and Financial Questionnaires being submitted by the contractor and not the party completing them
- Not following the steps listed in the cover letters or Instructions to Bidders/Quoters
  - What to complete and submit
  - Where and how to submit documents
  - Deadlines for submissions